

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address for counsel of Defendant.

No response has been filed by the Defendant.

### **Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve a copy of the filed Order on Defendant.

13. 9:00 AM CASE NUMBER: L26-03042  
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. OLGA GORINOFF  
HEARING IN RE: MOTION TO QUASH SERVICE  
FILED BY:

**\*TENTATIVE RULING:\***

### **Background**

Defendant filed a Motion to Quash the Summons, along with accompanying documents, arguing that service of process was invalid.

Specifically, Defendant claims that she was never personally served, and that the substitute service was invalid because the server delivered the documents to the wrong address. Though the proof of service reflects that a registered process server served process on the co-resident of 121 Bellflower Ct., Defendant contends that service actually occurred at 115 Bellflower.

The Defendant indicates that the resident of 115 Bellflower provided the process documents to Defendant on 4/21/26.

The Motion is unopposed.

Defendant notified Plaintiff of this Motion and hearing by mail in a timely manner

### **Analysis**

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, even assuming for the sake of argument that personal service did not occur, and that substitute service was not done properly, the Defendant appears to concede that she, in fact, received copies of the Summons and Complaint.

This suggests to the court that, by a preponderance of the evidence, Defendant has been served with process.

The court will grant leave to file his Answer within 10 days of this 8/4/26

### **Disposition**

Defendant's Motion is denied.

However, Defendant to file Answer within 10 days of 8/4/26.

Court to file Order.

**14. 9:00 AM CASE NUMBER: MSL18-05654**  
**CASE NAME: WILSHIRE COMMERCIAL CAPITAL, LLC VS PEELER**  
**HEARING IN RE:**  
**FILED BY:**

**\*TENTATIVE RULING:\***

Defendant filed a Motion to Set Aside Entry of Default and Default Judgment.

Plaintiff filed a Response in opposition.

**Background**

Defendant cites Section 473(d) of the CCP as authority for the Motion, contending that he did not actually receive notice of process.

The procedural history of this case is that default judgment was entered in this county in 2019. The court takes judicial notice of this filing (specifically, 6/3/19).

**Analysis**

Authority for a court to set aside a default judgment lies in at least two different statutes of the CCP.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants this power. When a judgment was not the result of the party's mistake, negligence, inadvertence or surprise, the court can still grant a request to set aside a default judgment if it voids that the judgment is otherwise void. (See Sections 473(b) and 473(d).) While requests hinging on reasons of mistake or inadvertence have time limitation of 180 days, those for a void judgment do not have such a limitation.

However, what renders a judgment void such that it falls within the purview of Section